



Delaware County Commissioners Meeting August 7th 2023

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=hy_GmwrOCCM
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Delaware County Commissioners Meeting Summary

Meeting Date: August 17, 2023

Location: Delaware County, Indiana

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioners meeting to order at **00:09:05** on Monday, August 17, 2023.
- **Attendance:**
 - **Present:** Mr. Henry, Mr. King, and Ms. Reagan.
 - **Absent:** None noted.
 - **Presiding Officer:** Not explicitly designated by title, but conducted by consensus of the commissioners.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** **00:00:34** The meeting opened with the Pledge of Allegiance.
- **Approval of Minutes:** **00:01:14** The minutes of the commissioner meeting from July 17, 2023, were approved by roll call vote (Mr. King: Yes; Ms. Reagan: Yes; Mr. Henry: Yes).

3. Substantive Business & Board Action

- **00:01:31 American Rescue Plan (ARP) Small Business Fund Distribution**
 - **Sponsor / Presenter:** Ted Baker, Muncie Innovation Connector.
 - **Deliberation Summary:** Mr. Baker presented the final requests to distribute remaining American Rescue Plan (ARP) funds to local small businesses. Both applicants successfully cleared committee review.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes; Ms. Reagan: Yes; Mr. Henry: Yes) for \$28,500 each to *Gregory's Sewer and Drain Cleaning LLC* and *Fosters Fire and Security LLC*, depleting the allocated fund.
- **00:03:06 Peterson Consulting Services Engagement Letter**
 - **Sponsor / Presenter:** Mr. Carroll.
 - **Deliberation Summary:** Contract renewal for compiling capital assets, roads, and purchases to meet state gas/capital asset reporting requirements enacted approximately three years prior.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Ms. Reagan: Yes; Mr. Henry: Yes; Mr. King presumed affirmative based on context).
- **00:03:47 23rd Street Trail Easement Agreement**
 - **Sponsor / Presenter:** John (County Attorney / Legal Counsel).
 - **Deliberation Summary:** Property acquisition easement agreement negotiated with the property owner for the 23rd Street trail project in the industrial center.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes; Ms. Reagan: Yes; Mr. Henry: Yes).
- **00:04:27 Ordinance No. 2023-017: Extension of Solar Farm Moratorium**
 - **Sponsor / Presenter:** John (County Attorney).
 - **Deliberation Summary:** First reading of an ordinance to extend the current solar farm moratorium to December 31, 2023. The Planning Commission's committee needed additional time to finish its work and consult with a newly hired expert.
 - **Item-Specific Public Input:** Addressed later during General Public Comment.
 - **Action & Vote Disposition:** Approved for introduction/first reading by roll call vote (Ms. Reagan: Yes; Mr. Henry: Yes; Mr. King presumed affirmative).
- **00:05:29 Resolution No. 2023-017: Acceptance of State Public Health Funding**
 - **Sponsor / Presenter:** Jamie Band, Health Department Administrator.
 - **Deliberation Summary:** Official opt-in resolution for "Health First Indiana" state public health funding. The Health Department board unanimously approved receipt. Mr. Band also provided a building renovation update noting asbestos remediation

had begun, funded by previous ARP allocations, keeping the project under budget. Seasonal flu and free COVID-19 booster plans were briefly discussed.

- **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Mr. King: Yes; Ms. Reagan: Yes; Mr. Henry: Yes).
 - **00:10:05 Resolution No. 2023-018: Highway Department Equipment Master Lease**
 - **Sponsor / Presenter:** County Attorney / Highway Department.
 - **Deliberation Summary:** A 10-year Master Lease agreement covering highway department equipment: two dump trucks, two tractors, and a mower. Commissioners discussed amortization, payment structures across 2024<U+2013>2028, and the financial flexibility of leasing versus outright purchase.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (Ms. King: Yes; Ms. Reagan: Yes; Mr. Henry: Yes).
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4. Department Head Reports & Updates

- **00:12:09 Probation Department Initiatives Update:** Chief Probation Officer Jeff Hanser, alongside Emily Stoltz (Job Program Coordinator) and John Bush (Probation Officer), provided updates on three major departmental initiatives:
 1. **JUMP Program (Judicial Upward Mobility Partnerships):** An employment and education partnership with Ivy Tech now reaching 220 clients with a recent graduating cohort of 14. Expanding beyond manufacturing into hospitality, landscaping, and union trades.
 2. **IRAQS (Integrated Re-entry and Correctional Support):** A peer-recovery and support force multiplier operating across jails and community supervision to handle treatment placement and warm handoffs.
 3. **JDAI (Juvenile Detention Alternatives Initiative):** Focuses on community-based alternatives and grassroots collaboration to address post-pandemic youth mental health and trauma, maintaining a 90% success rate on alternatives to detention.
 - **00:30:53 Administrative Reports:**
 - Weights and measures monthly report entered into the record.
 - **Payment of Claims:** Claims approved totaling \$3,077,219.43 and payroll/claims of \$89,462.81. Approved by roll call vote (Mr. King: Yes; Ms. Reagan: Yes; Mr. Henry: Yes).
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5. Open Public Comment / Citizen Forum

- **00:31:41 Harold King** (Rural Gaston area)

- Praised the probation department's youth outreach initiatives. Emphasized that parents also need parental guidance support. Thanked the board for continuing the solar moratorium and urged continued caution regarding industrial solar on productive farmland.
- **00:33:40 Kathy Curtly** (Gaston / Washington Township area)
 - Speaking on behalf of several hundred property owners against industrial solar installations on farmland. Highlighted concerns regarding declining property values, toxic chemical contamination, drainage issues, foreign-owned LLCs, and dependence on overseas manufacturing. Urged the county to implement strong protective solar ordinances.
- **00:37:05 Patricia (Patty) Lemon** (Elm Lake, Gaston area)
 - Voiced concerns regarding deteriorating private road infrastructure, bridges, and culverts at Elm Lake. Noted that heavy delivery and trash trucks are damaging the privately maintained lane and aging bridges, creating hazards for emergency services. County highway representatives clarified that the road is private property and outside county jurisdiction for maintenance.
- **00:42:58 Tim Nickum** (Rural Delaware County)
 - Spoke as a former member of the Solar Study Committee. Suggested that the committee review the final study report before publication to ensure alignment with committee discussions. Reiterated concerns that industrial solar primarily benefits LLCs and leasing landowners while imposing negative impacts on the broader community.

6. Administrative Updates & Adjournment

- **00:46:08 Board Announcements:** The presiding officer offered condolences and recognition to victims, families, and First Responders (Sheriff's Department and EMS) involved in a recent shooting incident in Delaware County and subsequent hospital-related incidents.
 - **00:47:01 Adjournment:** A motion to recess/adjourn was made and approved by roll call vote (Mr. King: Yes; Ms. Reagan: Yes; Mr. Henry: Yes). Meeting recessed.
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